ELECTION INDIA

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Designed and produced by: *India Tourism Development Corporation for the Election Commission of India*. **Printed at:** *Everest Press, New Delhi.*

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From the Desk of the Chief Election Commissioner

The Election Commission of India had announced the schedule for electoral roll revision with respect to 01.01.2005 in all the States except the States of Maharashtra and Arunachal Pradesh that went to polls in October, 2004. While intensive revision of rolls is being undertaken in all the North-Eastern States (except Arunachal Pradesh) and the State of Jammu & Kashmir, revision of summary nature is being done in other States (except Maharashtra). The draft electoral rolls were published on September 15, 2004 in most of the Assembly Constituencies.

For the first time draft electoral rolls with photographs were published in the State of Kerala and two Assembly Constituencies in Haryana. This would be yet another step to curb bogus voting.

Since correct electoral roll form the basis of any good election, the Commission has always been sensitive to the fidelity of electoral rolls and therefore has asked all Chief Electoral Officers to undertake this exercise in all earnestness. Taking a serious note of criticism about missing names during the Lok Sabha elections held in April-May, 2004, the Commission ordered a special summary revision of rolls in the State of Maharashtra before the General Elections to its Legislative Assembly held in October, 2004. To the credit of all involved, the Commission received no major complaint in this regard during these Assembly elections.

All electors must verify their names and entries when electoral rolls with respect to 01.01.2005 are finally published in most of the Assembly Constituencies on January 3, 2005. In case, their names are found missing or entries wrong, they may make necessary application to the concerned Electoral Registration Officer for inclusion or correction of entries, as the case may be. The Commission, for the first time, has introduced e-registration facility for the voters in the State of Haryana and cities of Bangalore, Shimla, Bhubaneshwar following the Maharashtra experiment. The final electoral rolls for all States except Assam will be available on web.

The Commission entered into a Memorandum of Understanding with the Federal Electoral Institute of the United Mexican States for cooperation in electoral matters. The Commission, on invitation, participated in the observation programmes for the US Presidential elections held on November 2, 2004 which gave an opportunity to understand the system of elections in that country. During this visit, notes were also exchanged with Mr. Bradley A. Smith, Chairman, US Federal Election Commission. Useful interactions took place during the visits of the Chief Election Commissioners of Nepal and Pakistan to the Commission.

The Commission has already announced the schedule for the forthcoming General Elections to the Legislative Assemblies of Haryana, Bihar and Jharkhand. These States will go to polls in February, 2005. It is hoped that all candidates and political parties will maintain democratic traditions and decorum, follow Model Code of Conduct and refrain from personal criticism in order to improve purity of election process.

(T S KRISHNA MURTHY)
Chief Election Commissioner of India

The Election News

ECI signs MoU with the Federal Electoral Institute of the United Mexican States

The Election Commission of India (ECI) and the Federal Electoral Institute of the United Mexican States (IFE) signed a Memorandum of Understanding (MoU) for Cooperation in Electoral Matters on October 27, 2004, acting in their capacities as State institutions with responsibility in their respective countries for electoral administration, wishing to formalise their relationship in a joint effort to reinforce their affinities, reaffirming their commitment to democracy and reposing trust in free and fair democratic processes and generally accepted norms of human rights, seeking to strengthen democratic institutions in order to improve electoral management and administration, considering the need to build on experience gained by both parties and to exchange technical expertise and information for research and analysis purposes in the field of elections and democracy, recognising the need to establish a cooperation mechanism for the design and implementation of the electoral process as well as for exchange consultation and cooperation in programmes and activities in the field of electoral management and administration, the two parties agreed to undertake task of promoting cooperation, on mutually agreed terms & conditions in priority areas in the electoral management field including:

Mr. Anand Kumar, Deputy Election Commissioner, ECI; Mr. Luis Carlos Ugalde, President Councillor, IFE; Mr. N Gopalaswami, Election Commissioner of India and Ms. Maria Del Carmen Alanis, Executive Secretary, IFE at the time of signing of MoU in Mexico City.

- Promoting initiatives designed to strengthen electoral systems and democratic institutions;
- Endorsing knowledge and experience in the field of organizational and technical development, with the view of strengthening the management of electoral process;
- Assisting other Electoral Authorities in the organization and conduct of electoral processes on demand;
- Encouraging relationships with other electoral authorities and organisations;
- Producing and disseminating materials pertaining to electoral systems, voting technology, voters' education and awareness, and involving vulnerable groups including women which could enhance participation in electoral processes or related areas; and
- Any other modality of cooperation mutually agreed by the Parties.

Mr. Anand Kumar, Deputy Election Commissioner on behalf of Election Commission of India and Mr. Luis Carlos Ugalde, President Councillor and Ms. Maria Del Carmen Alanis, Executive Secretary on behalf of IFE signed the MoU in presence of Mr. N. Gopalaswami, Election Commissioner of India in Mexico City, Mexico.

Indian delegation participates in the Electoral Workshop in Mexico

Mr. N. Gopalaswami, Election Commissioner of India and Mr. Anand Kumar, Deputy Election Commissioner participated in a three-day workshop organized jointly by IFE and ECI from October 27-29, 2004. While the Indian delegation made presentations on the Electoral System in India, Electronic Voting Machines and Security Aspects in Indian Elections, Mexicans made presentations on Registry of Voters and Electoral Processes in United Mexican States. The presentations on all subjects were made in Mexico City except on Electoral System in India that was made in the city of Hidalgo. Mr. Manuel Carrillo, Head, International Affairs Unit, IFE was the chief coordinator of the conference.

Mr. N. Gopalaswami, Election Commissioner of India and Mr. Anand Kumar, Deputy Election Commissioner participating in the Electoral Workshop in the city of Hidalgo, Mexico.

Election Commission of India observes US Presidential Election Programmes

The Election Commission of India (ECI), on the invitation of International Foundation for Electoral Systems (IFES) and US Electoral Assistance Commission, sent a three-member delegation consisting of Mr. T.S. Krishna Murthy, Chief Election Commissioner of India, Mr. N. Gopalaswami, Election Commissioner and Mr. Anand Kumar, Deputy Election Commissioner to attend the observation programmes for the US Presidential Election programmes held on November 2, 2004. As part of these programmes, the delegation witnessed voting in the State of Virginia through e-Slate and Electronic Voting Machines. The Commission had useful interactions with the Mr. Richard W. Soudriette, President, IFES, Mr. Paul De Gregorio, Commissioner, US Electoral Assistance Commission and Mr. Bradley A. Smith, Chairman, US Federal Election Commission.

Mr. T.S. Krishna Murthy, Chief Election Commissioner of India with Mr. Bradley A. Smith, Chairman, US Federal Election Commission

During this visit a presentation was made by Mr. Anand Kumar, Deputy Election Commissioner at IFES regarding Indian Electronic Voting Machines (EVMs). Members of various African Election Commissions and Election Commission of Indonesia evinced great interest in Indian EVMs.

Mr. T.S. Krishna Murthy, Chief Election Commissioner of India with Mr. Paul De Gregorio, Commissioner, US Electoral Assistance Commission

Commonwealth Secretariat decides to hold next meeting of Heads of Electoral Bodies in India

The Commonwealth Secretariat has decided to hold next meeting of the Heads of Electoral Institutions in Commonwealth in New Delhi from February 24-27, 2005.

Chief Election Commissioners of Nepal and Kenya witness Indian elections in Maharashtra

Mr. T.S. Krishna Murthy, Chief Election Commissioner of India; Mr. B.B. Tandon and Mr. N. Gopalaswami, Election Commissioners with Mr. Jayaram Singh Bohra, Chief Election Commissioner of Nepal in ECI

Mr. Jayram Singh Bohra, Chief Election Commissioner of Nepal led a five-member delegation to witness the General Elections to the State Legislative Assembly of Maharashtra held in October, 2004. He later met the Commission for exchange of ideas on various subjects of mutual interests in Delhi. Mr. Edward Lopokoiyits, Chief Election Commissioner of Kenya also had a feel of Indian election system during Maharashtra elections. Both Mr. Jayram Singh Bohra, Chief Election Commissioner of Nepal and Mr. Lopokoiyits were highly impressed by Indian electoral system as well as EVMs.

ECI delegations visit Republic of Uzbekistan

Three delegations from ECI participated in various conferences/seminars organized by the Electoral Commission of Uzbekistan in the months of October-November, 2004 for their forthcoming General Elections. Mr. A.K. Majumdar, Secretary, ECI and Mr. P.S. Thangkhiew, Chief Electoral Officer, Meghalaya participated in the International Conference "Election Technologies and Mass Media: Legal and Ethical Aspects". Mr. K.F. Wilfred, Secretary, ECI and Mr. Gurcharan Singh, Chief Electoral Officer, Gujarat participated in the Round Table "Political Parties and Elections: International Experience and Legislation of Uzbekistan". Mr. R.K. Srivastava, Secretary, ECI and Mr. M.K. Parida, Chief Electoral Officer, Arunachal Pradesh participated in the Round Table "International Standards in Democratic Elections and Election Legislation of Uzbekistan".

Chief Election Commissioner of Pakistan visits Indian Election Commission

Chief Justice (Retd.) Irshad Hasan Khan visited Election Commission of India on the invitation of Chief Election Commissioner of India from November 29 to December 6, 2004. During this visit, he had wide ranging discussions on various subjects of mutual interest. The two Commissions stressed upon the need to strengthen the democratic systems in two countries.

Chief Election Commissioner of India attend the Asian Conference on Democracy and Electoral Reforms and Annual Meeting of the Asian Electoral Authorities Association (AEAA) in Philippines

Mr. T.S. Krishnamurthy, Chief Election Commissioner of India attended the Asian Conference on Democracy and Electoral Reforms and Annual meeting of AEAA held in Philippines from November 12-14, 2004. During this meeting, the Asian Electoral Authorities discussed electoral processes in Asia from three perspectives, the Government, the academe and the civil society.

Election Commission announces the schedule for the General Elections to Legislative Assemblies of Haryana, Bihar and Jharkhand

The Election Commission of India announced the schedule for the General Elections to the Legislative Assemblies of Haryana, Bihar and Jharkhand on 17.12.2004 as follows:

Poll Events	All Assembly Constituencies in Haryana Phase-I of Elections in Bihar & Jharkhand	Phase-II of Elections in Bihar & Jharkhand	Phase-III of Elections in Bihar & Jharkhand
1. Announcement	17.12.2004 (Friday)	17.12.2004 (Friday)	17.12.2004 (Friday)
2. Issue of Notifications	10.1.2005 (Monday)	20.1.2005 (Thursday)	29.1.2005 (Saturday)
3. Last date for making Nominations	17.1.2005 (Monday)	27.1.2005 (Thursday)	5.2.2005 (Saturday)
4. Scrutiny of Nominations	18.1.2005 (Tuesday)	28.1.2005 (Friday)	7.2.2005 (Monday)
5. Last date for the withdrawal of Candidatures	20.1.2005 (Thursday)	31.1.2005 (Monday)	9.2.2005 (Wednesday)
6. Date of Poll	3.2.2005 (Thursday)	15.2.2005 (Tuesday)	23.2.2005 (Wednesday)
7. Counting of Votes	27.2.2005 (Sunday)	27.2.2005 (Sunday)	27.2.2005 (Sunday)
8. Date before which the Election shall be completed	5.3.2005 (Saturday)	5.3.2005 (Saturday)	5.3.2005 (Saturday)

The Model Code of Conduct came into force in these States with the announcement.

Other Elections

The Election Commission of India announced the schedule for various bye-elections to fill casual vacancies in Lok Sabha and State Legislative Assemblies separately. The poll for bye-elections from Luni Assembly Constituency in Rajasthan and Nagpur South and South Solapur Assembly Constituencies in Maharashtra will be held on January 24, 2005. The Commission decided to hold the single bye-election to the Council of State from Kerala on January 6, 2005.

The Commission decides to appoint more Observers for forthcoming elections in Haryana, Bihar and Jharkhand

The Commission decided to appoint one General Observer for each Assembly Constituency and one Expenditure Observer for each District for the forthcoming Legislative Assembly Elections in Haryana, Bihar and Jharkhand. Earlier, Commission used to appoint two General Observers and one Expenditure Observer in each District. The decision to increase the number of Observers was taken to ensure closer supervision of electoral process.

Final electoral rolls to be published on January 3, 2005

The final electoral rolls will be published at all designated locations and post offices in the States of Haryana, Bihar and Jharkhand on January 3, 2005. The electors may confirm inclusion of their names and entries. In case, their names are missing or entries are wrong, they may apply in prescribed forms for inclusion or correction, as the case may be, to the concerned Electoral Registration Officer. The Commission has made all necessary forms for addition/ deletion of names, modification/transposition of entries also available in the post offices.

First Photo Electoral Rolls will make their appearance in Haryana

The first electoral rolls with photos will make their appearance in Ambala and Baroda Assembly Constituencies of Haryana when final electoral rolls will be published on 03.01.2005. Each entry carries photo of the elector besides other details. These rolls will go a long way in eliminating bogus voting.

New Chief Electoral Officers

Mr. R.K. Gupta took over as new Chief Electoral Officer of Jammu & Kashmir during the quarter. Mr. Rajesh Yadhuvanshi joined as Chief Electoral Officer of Goa. Dr. G.S.G. Ayyanger is the new Chief Electoral Officer, Tripura. While Mr. Naresh Gupta has taken charge as Chief Electoral Officer, Tamil Nadu, Mr. Madhup Vyas took over as CEO, Lakshdweep islands. All these officers are senior civil servants.

Know your Chief Electoral Officer

R.K. Gupta
Chief Electoral Officer, Jammu & Kashmir

Mr. Mrityunjay Sarangi, Chief Electoral Officer, Tamil Nadu joined the Delimitation Commission of India as Officer on Special Duty on November 10, 2004. Mr. Sarangi was Chief Electoral Officer, Tamil Nadu from September 25, 2000 to November 9, 2004.

Commission organizes Art of Living Camp for its employees

The Commission organized an Art of Living camp for its employees from November 29 to December 4, 2004. Thirty-four employees attended the camp. In the camp, which was a grand success, various yoga and meditation techniques for removing stress, improving health and energy level were taught.

Did you know ? If not, you may like to

Model Code of Conduct

The Model Code of Conduct is a unique instrument through which Election Commission of India provides a level playing field to various political parties. By enforcing Model Code of Conduct it is ensured that the Government of the day does not have any undue advantage by virtue of its position of power over other political parties. The Model Code of Conduct was evolved over a period of time for the guidance of candidates and political parties at the time of elections. This instrument is a major contribution of Indian electoral system to the cause of democracy.

The credit for bringing the Code of Conduct into observance for the first time goes to the politically conscious State of Kerala. The State administration of Kerala in the year 1960 drafted a code that covered important aspects of electioneering like meetings, processions, speeches, slogans, posters and placards.

The Election Commission of India introduced the code entitled, "Role and responsibilities of political parties during elections: an appeal to political parties for the observance of a minimum code of conduct during election propaganda and campaign" in the year 1968. Since then, this Code has become the bottom line for free and fair elections. Mr. Harbans Singh Jalal, ex-MLA in CWP No. 270 of 1997 before the Hon'ble High Court of Punjab and Haryana challenged the application of Model Code of Conduct from the date of announcement of election. His contention was that the code could be enforced only from the date of notification of election. The Hon'ble High Court on May 27, 1997, upheld the stand of Election Commission of India and pronounced that it becomes enforceable from the date of announcement of elections.

The Union of India took up this matter on appeal in the Supreme Court of India. Subsequently, an agreement was reached between the Union of India and the Election Commission that the Model Code of Conduct can come into force from the date of announcement of elections. Thus, the Model Code of Conduct remains in force from the date of announcement of elections till the completion of elections. During this period, the Government of the day cannot announce any new scheme or initiate any new work or lure the electors with new promises. The ministers cannot use official machinery for furthering their political cause. The Government cannot display their achievements at the cost of public exchequer. The officers who are entrusted with electoral responsibilities cannot meet the political functionaries.

The Model Code of Conduct lays down rules for general conduct of candidates & political parties, conduct of meetings & processions and utilization of public facilities.

The Others said it…

Vote's in a computer? Your ticket to the polls…By Seema I Kamdar/TNN

Mumbai: Want to vote and don't know if your name figures on the voters' list? Just hop across to your polling booth and scroll down the electoral rolls to locate your name. If the booth is far away, you can do the same at the nearest post office. Don't feel like stepping out? No sweat. The Election Commission (EC) has plans to indulge you big time…In the cozy confines of your home, just switch on your computer and go to the state election commission link, **http://ceo.maharashtra.gov.in**. You can check out your name if your computer can read Marathi fonts. If your name is missing, click on 'Registration in electoral rolls' logo, and apply as a voter.

Mumbai votes out bogus voting…Times of India, October 16, 2004.

Mumbai: The assembly elections in Mumbai were free and fair, with negligible bogus voting. This is the verdict of not only the state election commission, but also of politicians and citizens' groups…Subash Desai, the Shiv Sena candidate from Goregaon, who is also said to be a contender for the chief minister's post, said the insistence on proof of identity has curbed bogus voting…A Malabar Hill resident said the polling staff not only insisted on proof of identity but checked and double-checked the evidence produced…Congress candidate from Andheri and Minister of State for Health, Suresh Shetty pointed out that except for the ration card there was not much scope for manipulation…"Since it is not a photo identity card, it was to some extent misused," he said.

State Election Office did creditable job this time… The Times of India, October 20, 2004.

Mumbai: After the fiasco during the Lok Sabha elections when thousands of voters were turned away from polling booths because their names did not figure in the voters' list, the state election office seems to have come out with flying colours this time around. Voting was almost flawless in the 65,000 polling booths across the state…..Clearly, the election authorities did not have anything to chance after their horrible experience during the Lok Sabha polls….Returning officers say they went into fourth-gear after the Lok Sabha polls. The electoral rolls were the first step towards error-free polling. Applications were permitted through post offices and internet. Voters' names were put up at housing societies. For the inert voter, rolls were uploaded on the internet and a special search facility was also devised to ensure he/she can check his/her name while sitting at home on the web.

Braille sheets come to blind…Times of India, October 15, 2004.

Mumbai: The blind could vote more easily this time, as Braille sheets were provided in almost every polling booths on the orders of the Bombay High Court. But the physically challenged did not have such an easy time, with few ramps being provided and in some places, little assistance from officers. There were no ramps in the suburbs, barring, curiously, the Juhu municipal school, where film stars flocked to cast their vote, and three municipal schools in Navi Mumbai which had ramps built just ten days ago. And while many disabled people found officers helpful, others really struggled to get assistance…Activists said the braille sheets were a success. However, the braille voter list was often tucked away safely under lock and key, with electoral officers in Malvani, for example, explaining that the lists would be dished out as soon as they encountered a visually challenged voter. But till then, they would have to stay inside envelopes – keeping in mind their make and rarity.